No. 26-1367

IN THE UNITED STATES COURT OF APPEALS FOR THE THIRD CIRCUIT

Lisa Tresslar

Appellant

v.

J. Jermaine Greene, Sr.

Craig A. Dally

Appellees

On Appeal from the United States District Court for the Eastern District of Pennsylvania

(Civ. No. 24-1435)

(The Honorable John M. Gallagher)

BRIEF OF APPELLANT LISA TRESSLAR

And Joint Appendix, Volume I (Appx0001-Appx0022)

Brian C. Farrell, Esquire
William Rieser, Esquire
Sidney L. Gold, Esquire
The Gold Law Firm, P.C.
1835 Market Street, Suite 515
Philadelphia, PA 19103
(215) 569-1999
Counsel for Appellant Lisa Tresslar

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STATEMENT OF JURISDICTION

The District Court had subject matter jurisdiction under 28 U.S.C. §1331 because Plaintiff-Appellant Lisa Tresslar's claim arises under the First Amendment to the United States Constitution and is brought under 42 U.S.C. §1983.

This Court has jurisdiction under 28 U.S.C. §1291. On February 2, 2026, the District Court entered a final order granting the motion for summary judgment filed by Defendants-Appellees Craig A. Dally and J. Jermaine Greene, Sr., dismissing all remaining claims with prejudice, and directing that the case be closed. (Dist. Ct. Dkt. 128, 129; Appx 0005-0022). The District Court's earlier order striking Tresslar's Declaration (Dist. Ct. Dkt. 117, Oct. 31, 2025; Appx 0004) was interlocutory. It merged into the final judgment, is reviewable on this appeal, and is expressly designated in Tresslar's timely notice of appeal. (Appx 0001-0003).

STATEMENT OF THE ISSUES

1. Whether the District Court erred in granting summary judgment on Tresslar's First Amendment retaliation claim by (1) holding that her remarks to the Northampton County Bar Association's Family Law Committee were made under her official duties, and therefore were not protected citizen speech, where the court applied the "related to" standard rejected by *Garcetti v. Ceballos*, 547 U.S. 410 (2006), *Lane v. Franks*, 573 U.S. 228 (2014), and *Flora v. County of Luzerne*, 776 F.3d 169 (3d Cir.

2015); and (2) resolving genuinely disputed facts about the scope of her duties against her. (See Appx 0756-0787; Appx 1406-1411; Appx 0005-0022).

2. Whether the District Court abused its discretion under Federal Rule of Civil Procedure 56(c)(4) in striking Plaintiff's Declaration (Dist. Ct. Dkt. 100-4) in its entirety. (See Appx 1414-1421; Appx 0004).

STATEMENT OF RELATED CASES

There are no pending cases or proceedings related to this appeal.

STATEMENT OF THE CASE

I. Material Facts

A. Tresslar's position and duties as Custody Master.

Lisa Tresslar served as the Custody Master for the Northampton County Court of Common Pleas ("Northampton CCP") from 2014 until 2023, having been hired as its first full-time Child Custody Master. (Appx 0791 (Pl. Statement of Additional Material Facts ("Pl. SOMF") ¶8); Appx 0006 (Op. 1)). Her responsibilities centered on individual cases. She facilitated custody conferences between litigants, prepared case summaries, and sought settlement in individual matters, and, working within the court, she designed and implemented administrative procedures for the Custody Division. (Appx 0792-0794 (Pl. SOMF ¶¶13-15); Appx 0934-0935 (Baratta Decl. ¶¶5, 8)). Advocating policy positions to the Northampton County Bar Association or its committees was not among those duties.

In a sworn declaration that the District Court did not strike, Tresslar's supervisor, Judge Stephen Baratta, stated that he never asked Tresslar to act as a liaison to the Family Law Committee, never required her to become a member of the Bar Association or to attend its meetings, and would communicate with the Bar Association about the court's rules and procedures himself. (Appx 0938 (Baratta Decl. ¶¶24-25)). No judge or administrator ever instructed, assigned, or required Tresslar to attend or to speak at the Committee. (Appx 0802-0803 (Pl. SOMF ¶24)).

B. Tresslar's January 12, 2023 remarks to the Family Law Committee.

On January 12, 2023, Tresslar spoke at a meeting of the Family Law Committee of the Northampton County Bar Association (the "FLC"). (Appx 0822 (Pl. SOMF ¶83)). The FLC is a committee of the county bar, not an arm of Northampton CCP. (Appx 0007 (Op. 2); Appx 0821 (Pl. SOMF ¶79)). Tresslar was neither a member of it nor a designated representative of the court to it. (Appx 0019; Appx 0938 (Baratta Decl. ¶24)). She addressed an audience of roughly 30 family law attorneys for more than two hours. (Appx 0822 (Pl. SOMF ¶83); Appx 0673-0674 (Kruzel Dep. 75-76, 82-83)).

C. Defendants learned of Tresslar's remarks, and Greene threatened her within two weeks.

Defendants learned of Tresslar's remarks. Judge Koury, then the President Judge, testified that he was aware Tresslar had spoken at the January 12 meeting and understood that she had spoken about the court's rules. (Appx 0699 (Koury Dep. 79-80)). Greene admitted the same. He testified that, although he was away when

Tresslar spoke, Judge Koury told him upon his return that Tresslar had "spoke[n] at the Family Law against the rules[.]" (Appx 0655 (Greene Dep. 242-43) (emphasis added); Appx 0825-0827 (Pl. SOMF ¶87)).

Greene's reaction was swift. On January 25, 2023, two weeks after the FLC meeting, he confronted Tresslar. He accused her of arriving late to a custody conference the previous day and was, in her words, furious. (Appx 1153-1154 (Tresslar Dep. 170-74)). He told her that working outside regular business hours proved she had a "time-management problem." (Appx 1153 (Tresslar Dep. 171)). And he told her that "the day will come" when he would be put in charge of the custody office and would be her supervisor. (Appx 1153 (Tresslar Dep. 170-71)).

II. Proceedings Below

Tresslar filed suit in April 2024. (Dist. Ct. Dkt. 1; Appx 0009). Her June 27, 2024 Amended Complaint named as defendants the Northampton County Court of Common Pleas, Northampton County, Court Administrator Greene, President Judge Dally, and Judges Jennifer Sletvold and Paula Roscioli, and pleaded Title VII sex discrimination (Count I), Title VII retaliation (Count II), First Amendment retaliation under 42 U.S.C. §1983 (Count III), and a violation of the Equal Protection Clause (Count IV). (Dist. Ct. Dkt. 18; Appx 0037-0057).

The case narrowed at every stage. On October 18, 2024, the District Court dismissed the sex discrimination and equal protection counts and dismissed all claims

against Judges Sletvold and Roscioli, leaving a Title VII retaliation claim against Northampton CCP and the First Amendment retaliation claim against Defendants Greene and Dally. (Dist. Ct. Dkt. 40; Appx 0009). Tresslar then voluntarily dismissed her Title VII retaliation claim on July 15, 2025, which removed Northampton CCP from the case. (Dist. Ct. Dkt. 77; Appx 0009).

SUMMARY OF THE ARGUMENT

This is an important First Amendment case. It presents a question that recurs across public employment. When a government employee speaks out about a matter she came to know through her work, does she speak as a citizen, protected from retaliation, or merely as an employee, unprotected? The Supreme Court and this Court have settled the answer. A public employee's speech loses its protection only when it is "itself ordinarily within the scope" of her duties, not whenever it merely relates to or "concerns those duties." *Lane*, 573 U.S. at 240; *see also Flora*, 776 F.3d at 178.

Citizen speech. The dispositive question is not whether Tresslar's speech "related to" her job, but whether speaking to the Committee was itself ordinarily within the scope of her duties. *Garcetti*, *Lane*, and *Flora* make that distinction the heart of the inquiry, and the answer here is no. Tresslar's duties centered on individual cases. She addressed the Committee from outside the court's chain of command to expose asserted judicial misconduct that endangered children, despite a written warning not to criticize a judge. That is citizen speech.

The wrong standard. The District Court held otherwise only by applying the very "related to" test that *Lane* and *Flora* rejected, and by reasoning that Tresslar's job gave her the access and standing to speak, a rationale also foreclosed by *Javitz v. County of Luzerne*, 940 F.3d 858 (3d Cir. 2019).

STANDARD OF REVIEW

This Court exercises plenary review over an order granting summary judgment, applying the same standard the District Court. *See Dougherty v. Sch. Dist. of Phila.*, 772 F.3d 979, 986 (3d Cir. 2014). Summary judgment is proper only if, viewing the record in the light most favorable to the non-moving party and drawing all reasonable inferences in her favor, "there is no genuine dispute as to any material fact and the movant is entitled to judgment as a matter of law." Fed. R. Civ. P. 56(a); *see also Anderson v. Liberty Lobby, Inc.*, 477 U.S. 242, 248 (1986). Whether a public employee spoke as a citizen is a question of law reviewed de novo, although the scope and content of her job responsibilities is a question of fact. *See Flora*, 776 F.3d at 175.

The District Court's order striking Tresslar's declaration is reviewed for abuse of discretion. *See SodexoMAGIC, LLC v. Drexel Univ.*, 24 F.4th 183, 198 (3d Cir. 2022).

ARGUMENT

I. The District Court Erred in Granting Summary Judgment on Tresslar's First Amendment Retaliation Claim.

Tresslar asserted a retaliation claim against J. Jermaine Greene, Sr. and Judge Dally in violation of the First Amendment under 42 U.S.C. §1983. On appeal, Tresslar challenges the dismissal of that claim as it concerns her remarks to the Family Law Committee of the Northampton County Bar Association at its January 12, 2023 meeting, where she opposed proposed revisions to the county's custody procedures.[1]

II. The District Court Abused Its Discretion in Striking Tresslar's Declaration.

The Court can and should reverse on the record the District Court considered, for the reasons given above. That record, even without Tresslar's stricken declaration, was enough to create a genuine dispute over whether addressing the Family Law Committee was within her ordinary duties, and to require reversal without restoring the stricken declaration.

The strike order nonetheless warrants decision in either event. If the Court concludes that the considered record is not enough, the order cannot be ignored,

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[1] Tresslar does not pursue on appeal the two other instances of speech she identified below, her October 2022 memorandum to the Family Law Committee and her statements to an investigator for the Pennsylvania Judicial Conduct Board. Nor does she appeal the District Court's separate order striking paragraphs 44 through 64 of her Statement of Additional Material Facts. (Dist. Ct. Dkt. 116, Oct. 27, 2025).

because the declaration is where Tresslar herself states, under oath, that addressing the Committee was not part of her job. And even if the Court reverses on the considered record, the strike order will remain in force and will control the scope of the record on remand, where the parties will litigate the elements the District Court never reached, including whether Tresslar suffered an adverse employment action and whether Defendants would have taken the same action absent her speech.

Striking Tresslar's declaration was an abuse of discretion. If the Court reverses on Argument I, it should also reverse the strike order so that proceedings on remand go forward on the complete record. If it does not, it should hold that the strike order was an abuse of discretion, vacate the judgment, and remand so that the District Court may decide summary judgment on the complete record.

A. The declaration is not a sham affidavit.

Defendants principally argued that Tresslar's declaration was a "sham" that contradicted her deposition. But the District Court did not adopt that theory. Its order rests only on the grounds addressed in Section II.B below, and it nowhere finds a contradiction between the declaration and Tresslar's deposition. (Dist. Ct. Dkt. 117; Appx 0004). The sham argument is therefore available to Defendants, if at all, only as an alternative ground for affirmance.

But even that argument fails on its own terms. The sham affidavit doctrine is narrow. It bars a party from manufacturing a fact dispute to defeat summary judgment

by submitting an affidavit that contradicts her own prior sworn testimony without a plausible explanation for the conflict. *See SodexoMAGIC, LLC*, 24 F.4th at 209. Because summary judgment is not an occasion for credibility assessments, the rule permits striking only genuinely contradictory statements, and courts generally refuse to strike later statements supported by independent record evidence. *Id.* at 210.

B. The declaration satisfies Rule 56(c)(4), and wholesale striking was improper in any event.

The District Court's stated grounds, that the declaration "lacks legal foundation," presents "voluminous examples of inadmissible hearsay," and "contains information that is immaterial" to the claim (Dist. Ct. Dkt. 117; Appx 0004), do not support striking even part of the declaration, much less all of it. Rule 56(c)(4) requires only that a declaration be made on personal knowledge, set out facts that would be admissible in evidence, and show that the declarant is competent to testify. *See* Fed. R. Civ. P. 56(c)(4). Tresslar's declaration meets that standard.

The hearsay objection misapprehends the declaration's purpose. Where Tresslar recounts what attorneys and counselors told her, the statements are not offered for their truth but to show that the concerns existed, were communicated to her, and shaped the content and context of her speech, classic non-hearsay uses central to the First Amendment inquiry. *See* Fed. R. Evid. 801(c). Statements by Defendants or their agents on personnel and operational matters are admissible as opposing-party statements. *See* Fed. R. Evid. 801(d)(2).

CONCLUSION

For all these reasons, the judgment of the District Court should be reversed, the order striking Tresslar's declaration should also be reversed, and the case should be remanded for further proceedings on the complete record. In the alternative, if the Court does not reverse on the record the District Court considered, it should hold that striking Tresslar's declaration was an abuse of discretion, vacate the judgment, and remand so that the District Court may decide summary judgment on the complete record.

Respectfully submitted,

/s/ Brian C. Farrell
Brian C. Farrell, Esquire
William Rieser, Esquire
Sidney L. Gold, Esquire
The Gold Law Firm, P.C.
1835 Market Street, Suite 515
Philadelphia, PA 19103
(215) 569-1999
Counsel for Appellant Lisa Tresslar

July 27, 2026

CERTIFICATE OF COMPLIANCE

This brief complies with the type-volume limitation of Fed. R. App. P. 32(a)(7)(B) because it contains 2,155 words, excluding the parts of the brief exempted by Fed. R. App. P. 32(f).

This brief complies with the typeface requirements of Fed. R. App. P. 32(a)(5) and the type-style requirements of Fed. R. App. P. 32(a)(6) because it has been prepared in a proportionally spaced typeface using Typst in font size 14, font style EB Garamond.

/s/ Brian C. Farrell
Brian C. Farrell, Esquire
William Rieser, Esquire
Sidney L. Gold, Esquire
The Gold Law Firm, P.C.
1835 Market Street, Suite 515
Philadelphia, PA 19103
(215) 569-1999
Counsel for Appellant Lisa Tresslar

July 27, 2026

CERTIFICATION OF BAR MEMBERSHIP

I certify that at least one of the attorneys whose names appear on this brief is a member of the bar of this Court, or has filed an application for admission under 3d Cir. L.A.R. 46.1.

/s/ Brian C. Farrell
Brian C. Farrell, Esquire
William Rieser, Esquire
Sidney L. Gold, Esquire
The Gold Law Firm, P.C.
1835 Market Street, Suite 515
Philadelphia, PA 19103
(215) 569-1999
Counsel for Appellant Lisa Tresslar

July 27, 2026

CERTIFICATION OF TEXT OF E-BRIEF AND VIRUS CHECK

I certify that the text of the E-Brief and the text of the hard copies of this brief are identical.

I certify that a virus check was performed on the PDF file of this brief. The virus software used was Bitdefender.

/s/ Brian C. Farrell
Brian C. Farrell, Esquire
William Rieser, Esquire
Sidney L. Gold, Esquire
The Gold Law Firm, P.C.
1835 Market Street, Suite 515
Philadelphia, PA 19103
(215) 569-1999
Counsel for Appellant Lisa Tresslar

July 27, 2026

CERTIFICATE OF SERVICE

I, Brian C. Farrell, counsel for the filer and a member of the bar of this Court, certify that, on July 27, 2026, the brief and all accompanying appendices were filed electronically through the appellate CM/ECF system with the Clerk of Court. I further certify that all parties required to be served have been served.

/s/ Brian C. Farrell
Brian C. Farrell, Esquire
William Rieser, Esquire
Sidney L. Gold, Esquire
The Gold Law Firm, P.C.
1835 Market Street, Suite 515
Philadelphia, PA 19103
(215) 569-1999
Counsel for Appellant Lisa Tresslar

July 27, 2026